

Law of Equity and Trusts (EQT1)

Module 2: Equitable Remedies

Lesson 1: Specific Performance and Injunctions

Lesson Notes

KMVTECHUG

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Specific Performance – Nature

Specific performance is an equitable remedy that orders a party to perform their contractual obligation. It is granted when damages would be an inadequate remedy — classically in contracts for unique subject matter such as land.

The court does not grant specific performance as of right. It is discretionary. The claimant must show a valid, enforceable contract, that damages are inadequate, and that there are no bars to relief.

Key idea: Specific performance compels performance of the contract itself. Damages compensate for breach; specific performance aims to give the claimant what was promised.

Requirements and Bars

Requirements typically include: a concluded contract; sufficient certainty of terms; consideration; and inadequacy of damages. Bars include: lack of mutuality; hardship amounting to injustice; the claimant's own breach or lack of readiness to perform; clean hands issues; and contracts involving personal service in many cases.

In land contracts, specific performance is commonly sought. The interaction with the Registration of Titles Act Cap 240 must always be considered when title or third-party rights are involved.

Reflect: *Why is land often treated as unique for the purpose of specific performance?*

Injunctions – Types and Tests

An injunction is an order to do or refrain from doing something. Prohibitory injunctions restrain conduct; mandatory injunctions require positive action. Interim (interlocutory) injunctions preserve the status quo pending trial; final injunctions are granted after full hearing.

For interim injunctions, Ugandan courts draw on the American Cyanamid guidelines as applied locally (including authority such as *Kiyimba Kaggwa*): serious question to be tried; balance of convenience; and sometimes status quo and adequacy of damages.

Key idea: Interim injunctions are discretionary and fact-sensitive. Always structure your answer around the established guidelines and the evidence.

Key Takeaways

- Specific performance orders actual performance when damages are inadequate.
- It is discretionary and subject to established bars.
- Injunctions may be interim or final, prohibitory or mandatory.
- Interim injunctions in Uganda follow American Cyanamid / *Kiyimba Kaggwa*-type analysis.

Quick Revision Checklist

- ☐ I can define specific performance and when it is typically granted.
- ☐ I can list main requirements and bars to specific performance.
- ☐ I can distinguish types of injunction.
- ☐ I can outline the interim injunction guidelines used in Uganda.
- ☐ I know Cap 240 may affect land-related equitable relief.

Bridge

The next lesson covers other equitable remedies: rescission, rectification, account, delivery up and declaratory relief.